

CV-23-005108 ESQUIVEL, JUDY vs MONTUY, POLLY – Consideration of Reasonable Fees and Costs Incurred by Plaintiff as a Result of Defendant's Actions – GRANTED, unopposed.

County: stanislaus

Division: Civil Law and Motion

Department: 24

Hearing date: 2012-04-02

Motion: An award of attorney fees and costs generally requires the requested attorney fees and costs to be reasonable. The "reasonable hourly rate," for purposes of calculating an attorney's fee award, is that prevailing in the community for similar work. The relevant "community," for purposes of calculating an attorney fee award, is generally based on where the services are rendered, i.e., where the court is located. (*Tidrick v. FCA US LLC*, (2025)112 Cal. App. 5th 1147). The lodestar method is the typical approach for determining the reasonableness of the attorney fee award requested. *Nicholas v Taft*, (2007) 155 Cal. App. 4th 1233) The Court notes Counsel's declaration notably provides a block-billed aggregate request rather than contemporaneous time records to support the attorney fee claim. In *Guillory v. Hill*, the court held in determining attorney fee's reasonableness, that counsel should maintain billing time records in a manner that will enable a reviewing court to identify distinct claims and that Counsel may not submit a plethora of noncompensable, vague, block-billed attorney time entries, to support request for attorney's fees, and expect particularized, individual deletions as the only consequence; rather, counsel must prune the fee request to comply with the law instead of trying to transfer that responsibility onto the trial court. (*Guillory v. Hill*, (2019) 36 Cal. App. 5th 802 as modified (June 26, 2019). It has been held that in a proper case where a threshold showing has been made that obtaining local counsel was impracticable, a trial court should consider the need to hire more expensive out-of-town counsel as a factor in determining the base fee used in the lodestar figure or in evaluating whether to apply a lodestar enhancement. (*Nichols v. City of Taft*, supra citing *Horsford v. Board of Trustees of Calif. State Univ.* (2005), 132 Cal.App.4th at p. 394). No such threshold showing has been made here. Accordingly, the court applies an hourly rate of \$350.00 for Mr. Partiyelli, and \$200.00 for his associate. The Court also finds the reasonable attorney hours expended on this matter, bearing in mind the continuances and lack of meet and confer, to be 16 hours for Mr. Partiyelli's Associate and 10 hours for Mr. Partiyelli, totaling \$7,700.00. Notably, the experienced trial judge is the best judge of the value of professional services rendered in his or her court, and while his or her judgment is of course subject to review, it will not be disturbed unless the appellate court, reviewing the attorney's fee award, is convinced that it is clearly wrong. (*Tidrick v. FCA US LLC*, (2025)112 Cal. App. 5th 1147). Regarding litigation costs and expenses, the Court is guided by Civ. Proc. Code § 1033.5 and finds the claimed hotel charges for accommodation at the St. Regis in San Francisco, for witness interviews, including bar charges to be unreasonable, and finds the sum of \$1,500 a reasonable sum for accommodation for both attorneys for the witness interviews. In addition, car rental charges of \$350.00, and exhibit costs of \$350.00 appear reasonable to the Court. In similar vein, the court finds accommodation charges at the St Regis in San Francisco for a trial in Modesto to be unreasonable and finds \$700.00 to be a more reasonable accommodation charge, noting that witnesses were put up at the Springhill Suites in Turlock for the trial. Therefore, Plaintiff is entitled to reasonable attorney fees and costs in the sum of \$15,161.70. Plaintiff is accordingly granted reasonable attorney fees and costs in the sum of \$15,161.70. The following are the tentative rulings for cases calendared before Commissioner Richard Moths in Department 19 located at the Turlock Division at 300 Starr Avenue, Turlock, CA: ***There are no Tentative Rulings for Department 19*** Administrative ADA Accommodations Locations and Contact Info Privacy Policy Attorney Resources Judicial Council Forms Court Calendars California Court Self-Help Center California Judicial Branch Public Resources Court Holidays Stanislaus County Employee Access Outlook Share Point Superior Court of California County of Stanislaus Judicial Branch of California Privacy Terms of Use © 2026

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There are no Tentative Rulings for Department 19

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